

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Marshfield to grant additional licenses for the sale of all alcoholic beverages.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/14/2025</i>

HOUSE No.

[Pin Slip]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Marshfield to grant additional licenses for the sale of all alcoholic beverages.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Marshfield may grant 6 additional licenses for the sale of all
3 alcoholic beverages, as follows: (i) 1 license for the sale of all alcoholic beverages to be drunk on
4 the premises pursuant to section 12 of said chapter 138 to Don Bravo Mexican Grill located at 57
5 Snow Road #30, and 1 license for the sale of all alcoholic beverages to be drunk on the premises
6 pursuant to said section 12 of said chapter 138 to The Corner Café located at 2000 Ocean Street;
7 (ii) 1 license for the sale of all alcoholic beverages to be drunk on the premises pursuant to said
8 section 12 of said chapter 138 to an establishment located within the Brant Rock Village Overlay
9 District development zone described in subsection (b) upon approval of and under conditions set
10 forth by the licensing authority of the town of Marshfield; and (iii) 1 license for the sale of all
11 alcoholic beverages not to be drunk on the premises pursuant to section 15 of said chapter 138 to
12 Jack and Sons Package Store located at 1921 Ocean Street/Route 139, 1 license for the sale of all
13 alcoholic beverages not to be drunk on the premises pursuant to said section 15 of said chapter

138 to Hubbards Cupboard located at 29 Main Street, and 1 license for the sale of all alcoholic beverages not to be drunk on the premises pursuant to said section 15 of said chapter 138 to Ocean Market & Liquor located at 915 Ocean Street. A license granted under this section shall be subject to all of chapter 138 except section 17.

(b) The licensing authority shall restrict the license authorized in clause (ii) of subsection (a) of this section to establishments located within the town's Brant Rock Village Overlay District (BRVO) shown on a map entitled ZONING MAP Town of Marshfield, Massachusetts as adopted on April 27, 2015, a copy of which is on file in the office of the town clerk. Such license shall be clearly marked on its face "Brant Rock Village Overlay District."

(c) A license granted under clause (i) or (ii) of subsection (a) of this section shall only be executed in the dining room of a common victualler and such other public rooms or areas as may be deemed reasonable and appropriate by the licensing authority as certified in writing.

(d) (1) The licensing authority shall not approve the transfer of a license granted pursuant to clause (ii) of subsection (a) of this section to a location outside of the zoned area as described in subsection (b), but it may grant a license to a new applicant within such zoned area if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the applicant is in good standing with those departments and that all applicable taxes, fees, and contributions have been paid.

(2) If a license terminates or fails to renew a license granted under clause (ii) of subsection (a) of this section or any such license is cancelled, revoked or no longer in use, the license shall be returned physically, with all of the legal rights, privileges and restrictions

35 pertaining thereto, to the licensing authority and the licensing authority may then grant the
36 license to a new applicant under the same conditions as specified in this section.

37 (e)(1)The licensing authority shall not approve the transfer of a license granted pursuant
38 to clause (i) or (iii) of subsection (a) of this section to any other location, but it may grant the
39 license to a new applicant at the same initial location if the applicant files with the licensing
40 authority a letter from the department of revenue and a letter from the department of
41 unemployment assistance indicating that the license is in good standing with those departments
42 and that all applicable taxes, fees and contributions have been paid.

43 (2) If a licensee terminates or fails to renew a license granted under clause (i) or (iii) of
44 subsection (a) of this section, or any such license is cancelled, revoked, or no longer in use, it
45 shall be returned physically, with all of the legal rights, privileges, and restrictions pertaining
46 thereto, to the licensing authority which may, within 3 years after such return, then grant the
47 license to the new applicant under the same conditions as specified in this section, otherwise
48 such license shall dissolve.

49 (f) All licenses granted under this section shall be issued within 3 years after the effective
50 date of this act; provided, however, that if the license is originally granted within that time
51 period, it may be granted to a new applicant under subsections (d) or (e), as applicable,
52 thereafter.

53 SECTION 2. Upon the issuance of a license authorized in clause (iii) of subsection (a) of
54 section 1, the licensee shall return physically, with all of the legal rights, privileges and
55 restrictions pertaining thereto, to the licensing authority, its license for the sale of wine and malt
56 beverages not to be drunk on the premises under section 15 of chapter 138.

57 SECTION 3. Upon the issuance of a license authorized in clause (i) of subsection (a) of
58 section 1, the licensee shall return physically, with all of the legal rights, privileges and
59 restrictions pertaining thereto, to the licensing authority, its license for the sale of wine and malt
60 beverages to be drunk on the premises under section 12 of chapter 138.

61 SECTION 4. This act shall take effect upon its passage.